

25TRCP00346 25TRCP00346

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-31

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Case Number: 25TRCP00346 Hearing Date: July 31, 2026 Dept: L

Tentative Ruling

Judge Joel L. Lofton, Department L

HEARING DATE: July 31, 2026 TRIAL DATE: Not set

CASE: JOSHUA KRASNEGOR v. CITY OF HERMOSA BEACH, a California

municipal entity; SOUTH BAY EQUITY PARTNERS, LLC, a California

Limited Liability Company

CASE NO.: 25TRCP00346

DEMURRER

MOVING PARTY: South Bay Equity Partners, LLC

RESPONDING PARTY: Joshua Krasnegor

SERVICE: April 20, 2026

OPPOSITION: June 30, 2026

REPLY: July 7, 2026

RELIEF REQUESTED

South Bay Equity Partners, LLC (South Bay), demurrers to the fifth, sixth, seventh and

eight causes of action alleged in the Plaintiff's complaint.

BACKGROUND

Plaintiff owns and resides in a home at 832 3rd Street in Hermosa Beach, California. The

property at issue directly abuts Plaintiff's residence. South Bay acquired the property located at

210 Pacific Coast Highway in late 2023 and began pursuing redevelopment of the site. The

property was historically operated as a used car dealership and body shop and is allegedly

subject to a restrictive covenant prohibiting a change of use without Planning Commission

approval.

South Bay first sought to convert the property into a daycare center, which the City advised would require a conditional use permit. The Planning Commission denied the conditional use permit application in fall 2024. South Bay then resubmitted plans to convert the property to commercial/restaurant use while representing on the permit application that there would be "No Change in Use."

On June 3, 2024, the City of Hermosa Beach ("City") issued Building Permit No. B23-00616, classified as a Tier 1 ministerial remodel based on South Bay's declaration of \$110,000 improvement valuation and statement of no change in use. Since issuance, the permit has been modified through six revisions.

Plaintiff alleges that South Bay performed demolition work without a demolition permit and that South Bay's contractors disturbed asbestos-containing material without proper clearance or abatement, resulting in a stop-work order and Notices of Violation from the South Coast Air Quality Management District. Plaintiff further alleges that the project expands the pre-existing structure and places construction at or near the residential property line, allegedly violating mandatory setback and buffer requirements between commercial and R-1 residential uses.

Plaintiff alleges that South Bay's proposed commercial/restaurant operation will create ongoing noise, odor, light, privacy, fire-safety, and property-value impacts to Plaintiff and nearby residents.

Plaintiff filed this amended Petition on October 22, 2025, against the City and South Bay alleging ten causes of action. The first, second, third, fourth, ninth and tenth causes of action are solely against the City. The (5th) Declaratory Relief, (6th) Injunctive relief & (7th) Public Nuisance causes of actions are against both the City and South Bay and the (8th) Private Nuisance is solely against South Bay.

TENTATIVE RULING

South Bay's demurrer is SUSTAINED to the fifth cause of action WITHOUT leave to amend AND SUSTAINED as to all the other causes of action WITH leave to amend.

LEGAL STANDARD

A general demurrer may be taken to a complaint where “[t]he pleading does not state facts sufficient to constitute a cause of action.” (Code of Civ. Proc. § 430.10(e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal. App. 4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc. section 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal. App. 3d 902, 905.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn v. Mirda, supra, 147 Cal.App.4th 740, 747.)

Additionally, a special demurrer to a complaint may be brought on the ground the pleading is uncertain, ambiguous, or unintelligible. Code Civ. Proc section 430.10(f); Beresford Neighborhood Assn. v. City of San Mateo (1989) 207 Cal.App.3d 1180, 1191.) A demurrer based on uncertainty is disfavored and will be strictly construed even when the pleading is uncertain in some respects. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) A demurrers based on uncertainty are “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.)

DISCUSSION

Meet and Confer

A party filing a demurrer “shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) South Bay asserts in its Memorandum of Points and Authorities that prior to the filing of the Demurrer the Defendants Counsel met and conferred with Plaintiffs counsel with respect to the FAC’s alleged defects and deficiencies. Joshua Kransegor’s moving papers are silent on this issue.

Declaratory Relief

To qualify for declaratory relief under Code of Civil Procedure section 1060, a plaintiff must establish: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. Cal Code Civ Proc § 472a The actual controversy requirement encompasses a probable future controversy relating to the legal rights and duties of the parties but does not embrace controversies that are conjectural or anticipated to occur in the future.

South Bay contends that the declaratory relief cause of action fails because it seeks declarations regarding the City’s duties and the validity of City approvals, not South Bay’s independent legal obligations. In his response Plaintiff states that there is a ‘present and concrete controversy between Jushua Krasnegor and South Bay’. But Plaintiff does not make any arguments of any justiciable questions related to the rights or obligations of those two specific parties. Petitioner’s complaint is basically challenging the City’s approval of permits which South Bay has obtained in connection with their project.

Upon review of the FAC, the Court finds that Plaintiff has alleged sufficient facts to demonstrate an actual controversy between Plaintiff and South Bay. South Bay owns the property, is redeveloping it pursuant to the challenged permit, and claims the right to continue construction and operate the project under Permit B23-00616. The declarations sought by Plaintiff include determinations that the project violates setback and buffer requirements and that the permit is void or unenforceable. Under the California Environmental Quality Act (CEQA), an action seeking declaratory relief is generally unavailable to a petitioner to challenge the permits or approvals obtained by a real party in interest. Instead, the exclusive judicial mechanism to attack, review, set aside, void, or annul a public agency’s CEQA determination, finding, or decision is through a petition for a writ of mandate . Cal Pub Resources Code § 21168.5, Cal Pub Resources Code § 21168, POET, LLC v. State Air Resources Bd., 218 Cal. App. 4th 681 (2013).

However, Plaintiffs' declaratory relief seeks declarations that concern the Cities' legal duties and not any independent legal obligation owed by South Bay to Plaintiff. Declarations regarding whether the City must set aside approvals, conduct CEQA review, or require discretionary processes are governmental functions that only the City can perform. These declarations do not directly resolve South Bay's private duties to Plaintiff independent of the City's regulatory decisions. In *re Claudia E.*, 163 Cal. App. 4th 627 (2008). 163 Cal.App.4th 627 (2008), holds that the remedy of declaratory relief is strictly unavailable unless there is an "actual, present controversy" between the parties.

Injunctive Relief

As a threshold matter, South Bay is correct that injunctive relief is a remedy, not a cause of action. A cause of action must exist before injunctive relief may be granted. While injunctive relief may be sought if a plaintiff prevails on a substantive cause of action, it cannot stand alone as an independent claim. *Allen v. City of Sacramento*, 234 Cal. App. 4th 41 (2015), *Camp v. Board of Supervisors*, 123 Cal. App. 3d 334 (1981). A viable underlying cause of action must exist before a court has the authority to grant a request for injunctive relief. *Allen v. City of Sacramento*, 234 Cal. App. 4th 41 (2015), *Ivanoff v. Bank of America, N.A.*, 9 Cal. App. 5th 719 (2017)

South Bay contends that Plaintiff has not adequately pleaded the prerequisites for such relief, particularly irreparable harm and a substantial likelihood of success on the merits. *Costa Mesa City Employees Assn. v. City of Costa Mesa*, 209 Cal. App. 4th 298 (2012), *White v. Davis*, 30 Cal. 4th 528 (2003). South Bay further argues that it cannot be enjoined from acting pursuant to valid City permits without first invalidating those permits through mandamus proceedings against the City.

The Court finds merit in South Bay's argument that injunctive relief is properly characterized as a remedy rather than an independent cause of action. However, the Court recognizes that Plaintiff has pleaded causes of action for public and private nuisance (the Seventh and Eighth Causes of Action), which, if sufficiently stated, can support injunctive relief as a remedy. Because the Court is sustaining the demurrer to the nuisance causes of action with leave to amend (as discussed below), and because injunctive relief may be properly sought as a remedy for nuisance, the appropriate disposition is to sustain the demurrer with leave to amend to allow Plaintiff to seek injunctive relief as a remedy within the nuisance causes of action or other viable claims rather than as a standalone cause of action.

Public Nuisance

Under California law, a private person may maintain a civil action for a public nuisance only if the nuisance is "specially injurious to himself, but not otherwise". Cal Civ Code § 3493, *Venuto v. Owens-Corning Fiberglas Corp.*, 22 Cal. App. 3d 116 (1971). To establish standing to maintain such an action, the private plaintiff must allege and prove that they suffered a special injury in person or property of a character different in kind—rather than merely in degree—from the injury suffered by the general public. *Venuto v. Owens-Corning Fiberglas Corp.*, 22 Cal. App. 3d 116 (1971), *Brown v. Petrolane, Inc.*, 102 Cal. App. 3d 720 (1980), *Koll-Irvine Center Property Owners Assn. v. County of Orange*, 24 Cal. App. 4th 1036 (1994).

South Bay demurs to the public nuisance cause of action on the grounds that it does not adequately allege special injury distinct from general public harm or causation linking South Bay's conduct to the alleged nuisance. Causation is an essential element of a public nuisance cause of action. A plaintiff must establish a connecting element or a causative link between the defendant's conduct and the threatened harm. The causation element is satisfied if the conduct of a defendant is a substantial factor in bringing about the result. Public nuisance liability does not hinge on whether the defendant owns, possesses, or controls the property; the critical question is whether the defendant created or assisted in the creation of the nuisance. To satisfy the causation element in a public nuisance action, the plaintiff must demonstrate that the defendant's conduct was a "substantial factor" in bringing about the result or causing the alleged harm. *Citizens for Odor Nuisance Abatement v. City of San Diego*, 8 Cal. App. 5th 350 (2017), *Rutherford v. Owens-Illinois, Inc.*, 16 Cal. 4th 953 (1997). This substantial factor standard serves as California's test for cause-in-fact determinations, identifying a cause-in-fact as something that is a substantial factor in bringing about an injury. *Rutherford v. Owens-Illinois, Inc.*, 16 Cal. 4th 953 (1997).

The Court finds that the FAC's allegations concerning public nuisance are insufficient as currently pleaded. While Plaintiff alleges various impacts including air-quality hazards, fire hazards, noise, and odor, the allegations do not clearly distinguish between harms caused by South Bay's independent conduct and harms that flow from the City's permitting decisions.

South Bay contends that many of the alleged harms (setback violations, CEQA compliance issues, survey conflicts) are regulatory matters controlled by the City, not South Bay's independent conduct. The FAC alleges that South Bay "knew or should have known" that the project violated mandatory requirements, but the FAC does not adequately plead specific facts demonstrating what South Bay knew, when it knew it, and how South Bay's specific acts (as opposed to the City's regulatory decisions) created or substantially contributed to the alleged nuisance conditions.

The Court notes that while a permit does not immunize a permit holder from nuisance liability, Plaintiff must still plead facts showing that South Bay's conduct—separate from the City's issuance of permits—created or substantially contributed to nuisance conditions. The allegations must show more than that South Bay built in accordance with City-approved plans; they must show that South Bay's specific construction methods, operational practices, or design choices created the alleged interference.

Additionally, the FAC does not clearly establish special injury. The allegations are framed predominantly in terms of individualized impacts to Plaintiff's property—loss of privacy, property value diminution, noise and odor affecting Plaintiff's home. These are characteristics of private nuisance claims rather than public nuisance. While the FAC references impacts to "nearby residents" and the "surrounding residential neighborhood," it does not adequately allege concrete facts demonstrating that the alleged nuisance affects a considerable number of people independent of Plaintiff's own property interests or that Plaintiff's harm differs in kind from any public harm.

Private Nuisance

To prevail on a private nuisance action, a plaintiff must prove: (1) an interference with the plaintiff's use and enjoyment of property; (2) the invasion must be substantial, causing the plaintiff to suffer substantial actual damage; and (3) the interference must be unreasonable in nature, duration, or amount. *Lynch v. Peter & Associates etc.*, 104 Cal. App. 5th 1181 (2024), Cal Civ Code § 3479.

South Bay argues that the FAC relies on conclusory allegations that South Bay "knew or should have known" of the nuisance without supporting factual allegations. South Bay further contends that the FAC improperly attributes the alleged nuisance to City regulatory functions rather than to South Bay's independent conduct.

Whether the elements of substantial damage and unreasonableness are met is a question of fact determined by an objective standard. *Chase v. Wizmann*, 71 Cal. App. 5th 244 (2021). This standard evaluates whether a person of normal health and sensibilities living in the same community would be substantially damaged, and whether an impartial reasonable person would consider the interference unreasonable under all the circumstances. *Chase v. Wizmann*, 71 Cal. App. 5th 244 (2021). Furthermore, testing for unreasonableness requires determining whether the gravity of the harm outweighs the social utility of the defendant's conduct. *Fashion 21 v. Coalition for Humane Immigrant Rights of Los Angeles*, 117 Cal. App. 4th 1138 (2004).

The Court finds that the private nuisance allegations suffer from similar deficiencies as the public nuisance claim. The phrase "knew or should have known" is a legal conclusion that requires supporting factual allegations. The FAC does not plead specific facts demonstrating: (1) what South Bay actually knew about the alleged nuisance conditions; (2) when South Bay acquired such knowledge; (3) what specific acts or practices by South Bay (as distinguished from City-approved plans) caused unreasonable interference with Plaintiff's use and enjoyment of property; or (4) why South Bay's conduct was unreasonable.

Many of the alleged harms—zero-setback construction, loss of buffers, permit classification, survey reconciliation—are regulatory determinations made by the City. While South Bay performed the physical construction, the FAC must allege facts

showing that South Bay's specific construction methods, design choices, or operational practices created conditions that unreasonably interfered with Plaintiff's use and enjoyment of property, independent of the question of whether the City properly issued permits.

The Court recognizes that Plaintiff has alleged facts concerning demolition without a permit and disturbance of asbestos-containing materials. However, the FAC must more clearly connect these allegations to the elements of private nuisance and distinguish South Bay's independent conduct from regulatory compliance issues.

E. Uncertainty

South Bay contends that the FAC is uncertain and ambiguous as to South Bay because it impermissibly lumps South Bay together with the City and attributes governmental determinations to "Defendants" collectively without distinguishing South Bay's role.

A demurrer for uncertainty is strictly construed because ambiguities can be clarified under modern discovery procedures. The test is whether the complaint sufficiently appraises the responding party of the claims against it.

While the Court agrees that certain portions of the FAC could more clearly distinguish between the City's regulatory actions and South Bay's private conduct, South Bay's demurrer itself demonstrates that South Bay has been able to identify the challenged permit, the project history, South Bay's role, the alleged violations, and the theories of liability. This suggests that the FAC, while imperfect, provides sufficient notice to allow South Bay to respond.

The Court finds that the uncertainty issues raised by South Bay are better addressed through the leave to amend granted with respect to the substantive causes of action. When Plaintiff amends, Plaintiff shall clearly distinguish between allegations concerning the City's regulatory decisions and allegations concerning South Bay's independent conduct.

The demurrer on the ground of uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f), is **OVERRULED** as to the Fifth, Seventh, and Eighth Causes of Action. The substantive deficiencies are addressed through leave to amend on other grounds. As to the Sixth Cause of Action, the uncertainty issue is rendered moot by the Court's ruling sustaining the demurrer on substantive grounds.

V. LEAVE TO AMEND

South Bay requests that the demurrer be sustained without leave to amend, arguing that the defects are substantive and cannot be cured by amendment.

The burden of proving that amendment would be futile rests with South Bay. Where the nature of the plaintiff's claim is clear, and under substantive law no liability exists, a court should deny leave to amend. However, California follows a policy of liberally allowing amendments. Cal Code Civ Proc § 472, Cal Code Civ Proc § 472a

The Court finds that South Bay has not carried its burden to demonstrate that amendment would be futile. While South Bay argues that Plaintiff's theory is fundamentally flawed because it seeks to hold a private party liable for the City's regulatory failures, the law is clear that a permit does not immunize a permit holder from nuisance liability. The question is whether Plaintiff can allege sufficient facts showing that South Bay's independent conduct—separate from the City's permitting decisions—created nuisance conditions.

This is the first demurrer to the FAC. Plaintiff should be afforded an opportunity to amend to address the deficiencies identified in this ruling, including pleading with greater specificity the facts supporting causation, South Bay's knowledge, the

unreasonable nature of the interference, and the distinction between South Bay's conduct and the City's regulatory actions.

VI. CONCLUSION AND ORDER

For the reasons stated above, the Court rules as follows:

The demurrer is SUSTAINED as follows.

The demurrer to the fifth ground is SUSTAINED without leave to amend.

The demurrer to the other grounds is SUSTAINED with leave to amend.

Plaintiff shall file and serve any amended complaint within 30 days of service of notice of this order. Cal. Rules of Court, rule 3.1320 If Plaintiff fails to file an amended complaint within the time allowed, Defendant South Bay Equity Partners, LLC may seek dismissal of the sustained causes of action by ex parte application. Cal. Rules of Court, rule 3.1320

IT IS SO ORDERED.

Dated: July 31, 2026

Joel L. Lofton

Judge of the Superior Court